



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

AUG 29 1990

DOT-E 10448

1. Sultanate of Oman (U.S. Agent: Embassy of Oman, Washington, DC) is hereby granted an emergency exemption from certain provision of this Department's Hazardous materials Regulations to offer packages prescribed herein of Class A explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of rocket ammunition with explosive projectile, Class A explosive, which are forbidden for transportation by air and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Sultanate of Oman's application (through the Embassy of Oman in Washington D.C.) dated August 28, 1990 in accordance with 49 CFR 107.113 and 107.115 and a determination that it is necessary in the national interest of the United States of America. This determination is based on letters dated August 27, 1990 from the Department of the Air Force and August 29, 1990 from the Department of the Army.

3. HAZARDOUS MATERIALS (Descriptor and class). Rocket ammunition with explosive projectile (432 Tow missiles and 82 Sidewinder missiles), classed as Class A explosives.

4. PROPER SHIPPING NAME (Per ICAO). Rockets, UN 0181.

5. REGULATION AFFECTED. 49 CFR 172.101 table, column 6b; 175.30.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is in accordance with Air Force Regulations (AFR) 71-4.

8. SPECIAL PROVISION.

a. The carrier must conform to the requirements of 49 CFR 175.320(b).

b. A copy of this exemption must be carried aboard the aircraft used to transport packages covered by this exemption.

c. No other cargo is authorized aboard the aircraft except associated components of the missiles.

d. Shipment is to originate at McGuire AFB, New Jersey, destined for Oman and transported by Southern Air Transport.

e. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.

f. Upon completion of the shipment made under this exemption, a copy of the air bill must be forwarded to the Office of Hazardous Materials Transportation, Exemptions Branch within 10 days.

g. This exemption also constitutes the Competent Authority Approval of the United States for shipment of the Class A Explosives (UN 1.1 & 1.2) pursuant to Part 2, Chapter 1 - 1.3. of the ICAO Technical Instructions.

9. REPORTING REQUIREMENTS. Any incident involving fire, explosion or loss of packaging contents or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. November 30, 1990 or upon delivery of the shipment as described in paragraph 3, whichever occurs first.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

AUG 29 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FAA.